TENTATIVE RULINGS FOR 3-2-26
Department R17- Judge Gilbert G. Ochoa

This court follows California Rules of Court, rule 3.1308(a) (1) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (https://www.sb-court.org) by 3:00 p.m. on the court day immediately before the hearing.

If you do not have internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the Administrative Assistant. You may appear in person at the hearing but personal appearance is not required and remote appearance by CourtCall is preferred during the Pandemic. (See www.sbcourt.org/general-information/remote-access)

If you wish to submit on the ruling, call the Court, check-in and state that you will be submitting on the Tentative, and your appearance is not necessary. But you must check in.
If both sides do not appear, the tentative will simply become the ruling.
If any party submits on the tentative, the Court will not alter the tentative and it will become the ruling.
If one party wants to argue, Court will hear argument but will not change the tentative.
If the Court does decide to modify tentative after argument, then a further hearing for oral argument will be reset for both parties to be heard at the same time by the Court.
This procedure is meant to minimize your waiting time in Court.

WANG

v.

HE, et al.

CIVSB2412500

Motion: **(1) Set Aside Default**
(2) Set Aside Default

Movant: (1) Defendant Youbo He
(2) Defendant Guihua Xu

Respondent: (1) Plaintiff Li Wang
(2) Plaintiff Li Wang

APPLICABLE LAW AND ANALYSIS

A. Motion to Set Aside Default

i. Relevant Legal Principles

A motion to set aside a default may be brought pursuant to either Code of Civil Procedure[1] section 473, subdivisions (b) or (d), section 473.5 or on equitable grounds.

Under Code of Civil Procedure section 473, subdivision (b), "the court may, upon any terms as may be just, relieve a party … from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." Relief under section 473, subdivision (b) is discretionary unless the application is accompanied by an attorney affidavit of fault. Where such an attorney's statement of neglect is provided, the so-called mandatory provision of section 473 requires the court to vacate a dismissal regardless of whether the neglect was excusable or whether other conditions for *discretionary* relief are satisfied. (*Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 770.)

With respect to motions for relief from default, doubtful cases are resolved in favor of granting relief, because the law strongly favors trials and disposition on the merits. (*Fasuyi v. Permatex, Inc.* (2008) 167 Cal. App. 4th 681, 695-96.) When the party in default promptly seeks relief, and no prejudice to the opposing party will result in setting aside the default, very slight evidence will be required to justify a court in setting aside the default. (*Id.* at 696.) Application for such relief shall be accompanied by a copy of the answer or other pleading proposed to be filed and must be made "within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." (*Code of Civ. Proc*. § 473(b).)

Where service of summons has not resulted in actual notice to a party in time to defend the action, the court is empowered to grant relief from a default or default judgment under section 473.5. This section is designed to provide relief where there has been proper service of summons, but defendant nevertheless did not find out about the action in time to defend. Typically, these are

[1] All further citations shall be to the Code of Civil Procedure unless otherwise noted.

cases in which service was made by publication. (Ibid.; *Randall v. Randall* (1928) 203 Cal. 462, 464-465.)

In addition, the court has inherent equity power to vacate and set aside default judgments obtained through extrinsic fraud or mistake. (*Bioniarz v. Roloson* (1969) 70 Cal.2d 143, 146, citing *Weitz v. Yankosky* (1966) 63 Cal.2d 849, 855.) "'Two essential conditions are found in a classic case in equity which seeks to set aside a judgment: first, the judgment is one entered against a party by default under circumstances which prevented him from presenting his case; second, these circumstances result from extrinsic fraud practiced by the other party or his attorney. [Citation.] The vital question is 'whether the successful party has by inequitable conduct, either direct or insidious in nature, lulled the other party into a state of false security, thus causing the latter to refrain from appearing in court or asserting legal rights.' [Citation.] A party who seeks to have his default vacated under the court's equity power must make a stronger showing than is necessary to obtain relief under section 473 [Citation.] '[During] the period when relief under section 473 is available, there is a strong public policy in favor of granting relief and allowing the requesting party his or her day in court'" (*Aheroni v. Maxwell* (1988) 205 Cal.App.3d 284, 291.)

i. He's Motion to Set Aside

Defendant He motions for the court to set aside the default entered against him pursuant to sections 473(b) and 473.5. He states in his declaration filed in support of the instant Motion that he received a copy of the Summons for the instant action on September 25, 2024, but not the Complaint. He further states he acted promptly upon learning about the default judgment on August 18, 2025 and filed the instant Motion. He further argues the court "may lack personal jurisdiction under CCP § 410.10 due to insufficient California contacts."

In her Opposition, Plaintiff argues Defendants' request under Code of Civil Procedure section 473(b) is procedurally defective as Defendants failed to attach a copy of their proposed Answer to the Motion. Further, Plaintiff argues He fails to show mistake, inadvertence, surprise or excusable neglect as required under section 473(b). As for Defendants' request for relief pursuant to section 473.5, Plaintiff contends Defendants' claim that they never received a copy of the Complaint is not credible and contradicted by the Proof of Service, which shows the Defendants were personally served by a licensed process server on May 11, 2024.

He replies with Xu, arguing they were only handed "blank Summonses" on May 11, 2024 and only obtained a copy of the Complaint by paying for a copy of it on the court website. He argues this lack of actual notice makes relief mandatory under section 473.5.

As a preliminary matter, He raises as an issue in his Motion that the court "may lack personal jurisdiction under CCP § 410.10 due to insufficient California contacts." He, however, fails to further advance any arguments or facts in support of this position. When a brief fails to contain a legal argument with citation of authorities, the court may treat the arguments as waived or abandoned. (*Ellenberger v. Espinosa* (1994) 30 Cal.App.4th 943.)

He's argument that the court should grant the instant Motion under section 473.5 is unpersuasive. Section 473.5 of the Code of Civil Procedure states, in pertinent part, as follows:

> When service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against him or her in the action, he or she may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action.

Section 473.5 does not govern a default or default judgment obtained through a fraudulent return of service of summons. (*In re Marriage of Smith* (1982) 135 Cal.App.3d 543, 546.) Here, He contends the Complaint was never served to him as set forth in the Proof of

Service prepared by Xiaotian Fan and as such, his argument is essentially that the Proof of Service is fraudulent. Further, the court find He's statements to be contradictory and not credible. In his declaration, He indicates he was only served with a Summons on "09/25/2024." He further indicates he appeared in court on July 22, 2025, but without the Complaint, he lacked understanding about what the instant action was regarding. He's declaration fails to explain how he learned about the July 22, 2025 hearing. Moreover, his statements regarding receiving the Summons on September 25, 2024 is contradicted by arguments made in his Motion and in his Reply. In his Motion, He contends he received two Summons, but not the Complaint on September 25, 2024 and April 12, 2025. In the Reply, He states he received a blank Summons on May 11, 2024. Based on the foregoing, the court find He is not entitled to relief under section 473.5 of the Code of Civil Procedure.

Alternatively, He argues he is entitled to relief under section 473, subdivision (b), of the Code of Civil Procedure based on excusable neglect, as he was never served the Complaint. The general rule is that the six-month period within which to bring a motion to vacate under section 473 runs from the date of the default and not from the judgment taken thereafter. (*Nemeth v. Trumbull* (1963) 220 Cal.App.2d 788, 791). This is due to the fact that vacating the judgment alone ordinarily would constitute an idle act if the default would remain intact and permit immediate entry of another judgment. (*Id*. at 791-792). Here, He's request for relief under section 473, subdivision (b), is untimely as the instant Motion was filed more than six months after default was entered in the instant action. He makes no argument for equitable relief. While a court has broad discretion to vacate a default judgment and/or default, this discretion can only be exercised if the moving party establishes a proper ground for relief, by proper procedure and within the appropriate periods. (*Cruz v. Fagor America, Inc.* (2007) 146 Cal.App.4th 488, 495.) Here, the

court has no basis to exercise its discretion. Accordingly, the court denies He's Motion in its entirety.

ii. Xu's Motion to Set Aside

Xu motions for the court to set aside the default entered against her pursuant to Code of Civil Procedure section 473(b) and section 473.5. Xu states in her declaration filed in support of the instant Motion that she received only a copy of the Summons for the instant action on September 25, 2024, but not the Complaint. She argues she acted promptly upon learning about the default judgment on August 18, 2025 and filed the instant Motion.

In her Opposition, Plaintiff argues Defendants' request under Code of Civil Procedure section 473(b) is procedurally defective as Defendants failed to attach a copy of their proposed Answer to the Motion. Further, Plaintiff argues Xu fails to show mistake, inadvertence, surprise or excusable neglect as required under section 473(b). As for Defendants' request for relief pursuant to section 473.5, Plaintiff contends Defendants' claim that they never received a copy of the Complaint is not credible and contradicted by the Proof of Service, which shows the Defendants were personally served by a licensed process server on May 11, 2024.

Xu replies jointly with He, arguing they were only handed "blank Summonses" on May 11, 2024 and only obtained a copy of the Complaint by paying for a copy of it on the court website. Xu argues this lack of actual notice makes relief mandatory under section 473.5.

Again, as a preliminary matter, Xu raises as an issue in her Motion that the court "may lack personal jurisdiction under CCP § 410.10 due to insufficient California contacts." Xu, however, fails to further advance any arguments or facts in support of this position. When a brief fails to contain a legal argument with citation of authorities, the court may treat the arguments as waived or abandoned. (*Ellenberger v. Espinosa* (1994) 30 Cal.App.4th 943.)

Xu's argument that the court should grant the instant Motion under section 473.5 is unpersuasive. Section 473.5 of the Code of Civil Procedure states, in pertinent part, as follows:

> When service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against him or her in the action, he or she may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action.

Section 473.5 does not govern a default or default judgment obtained through a fraudulent return of service of summons. (*In re Marriage of Smith* (1982) 135 Cal.App.3d 543, 546.) Here, Xu contends the Complaint was never served to her as set forth in the Proof of Service prepared by Xiaotian Fan and as such, her argument is essentially that the Proof of Service is fraudulent. Further, I recommend the court find Xu's statements to be contradictory and not credible. In her declaration, Xu indicates she was only served with a Summons on "09/25/2024." Xu further indicates she appeared in court on July 22, 2025, but without the Complaint, she lacked understanding about what the instant action was regarding. Xu's declaration fails to explain how she learned about the July 22, 2025 hearing. Moreover, her statements regarding receiving the Summons on September 25, 2024 is contradicted by arguments made in her Motion and in her Joint Reply with He. In her Motion, Xu contends she received two Summons, but not the Complaint on September 25, 2024 and April 12, 2025. In the Reply, Xu states she received a blank Summons on May 11, 2024. Based on the foregoing, I recommend the court find Xu is not entitled to relief under section 473.5 of the Code of Civil Procedure.

Alternatively, Xu argues she is entitled to relief under section 473, subdivision (b), of the Code of Civil Procedure based on excusable neglect, as she was never served the Complaint. The general rule is that the six-month period within which to bring a motion to vacate under section

473 runs from the date of the default and not from the judgment taken thereafter. (*Nemeth v. Trumbull* (1963) 220 Cal.App.2d 788, 791). This is due to the fact that vacating the judgment alone ordinarily would constitute an idle act if the default would remain intact and permit immediate entry of another judgment. (*Id*. at 791-792). Here, Xu's request for relief under section 473, subdivision (b), is untimely as the instant Motion was filed more than six months after default was entered in the instant action. Xu makes no argument for equitable relief. While a court has broad discretion to vacate a default judgment and/or default, this discretion can only be exercised if the moving party establishes a proper ground for relief, by proper procedure and within the appropriate periods. (*Cruz v. Fagor America, Inc.* (2007) 146 Cal.App.4th 488, 495.) Here, the court has no basis to exercise its discretion. Accordingly, the court denies Xu's Motion in its entirety.

Ruling

The Court rules as follows:

(1) Deny He and Xu's Motions in their entirety.

Movant to give Notice and prepare Order.

Dated-

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Judge